

25STCV13672 25STCV13672

County: los-angeles

Division: Civil Law and Motion

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Hearing date: 2026-07-21

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Case Number: 25STCV13672 Hearing Date: July 21, 2026 Dept: 300

CASE NUMBER: 25STCV13672

CASE NAME: Eric Green vs. Anschutz Entertainment

Group

TYPE OF MOTION: Motion for Stay of Proceedings

FILING PARTY: Plaintiff Eric Green

RESPONDING

PARTY: Unopposed

HEARING DATE: July 21, 2026

Case Background

Plaintiff Eric Green (Plaintiff) is a pro se litigant who alleges Defendants Anschutz Entertainment Group, Inc. and Erika Chavira (collectively, Defendants) discriminated against him based on his age and sex, created a hostile work environment, and improperly handled an HR investigation after coworkers made false claims about his sexuality.

On May 9, 2025, Plaintiff filed a complaint against Defendants.

On May 29, 2025, Plaintiff filed a first amended complaint (FAC) but failed to properly serve Defendants.

On June 12, 2025, Plaintiff attempted to file a second amended complaint (SAC), but the court rejected the filing on June 13, 2025, for failure to obtain a court order to file a SAC.

On October 1, 2025, the Court sustained Defendants' demurrer to Plaintiff's FAC with 30 days leave to amend.

On October 27, 2025, Plaintiff filed a second amended complaint (SAC) against Anschutz Entertainment Group, LA Arena LLC, LA Live Theater LLC, Erika Chavira, Perlita Gomez, and Angela Baker alleging: (1) wrongful termination based on sexual orientation discrimination; (2) retaliation; (3) violation of Weingarten rights; (4) failure to administer sexual harassment training (Gov. Code § 12950); (5) emotional distress, and (6) punitive damages.

On January 2, 2026, Defendants filed the instant demurrer and motion to strike Plaintiff's SAC.

On March 11, 2026, the Court heard the demurrer and motion to strike and continued the hearing to allow Plaintiff to file an opposition. The Court ordered that the opposition be filed by March 25, 2026, and the reply be filed by April 1, 2026.

On May 5, 2026, the Court sustained the demurrer to the entirety of the SAC without leave to amend.

On May 15, 2026, Plaintiff filed the instant motion for stay of proceedings. The motion is unopposed.

Instant Pleading

Plaintiff moves the Court, pursuant to Code of Civil Procedure section 1281.4, for an order "to stay/pause the entry of final judgment pending the outcome of the arbitration scheduled for July 15, 2026...."

Decision

The motion is DENIED as MOOT.

Discussion

Plaintiff moves the Court, pursuant to Code of Civil

Procedure section 1281.4, for an order “to stay/pause the entry of final judgment pending the outcome of the arbitration scheduled for July 15, 2026....” (Motion, p. 1.) Specifically, Plaintiff seeks a “stay/pause until July 17, 2026....” (Motion, p. 2.)

Under Code of Civil Procedure section 1281.4, “[i]f a court of competent jurisdiction, whether in this State or not, has ordered arbitration of a controversy which is an issue involved in an action or proceeding pending before a court of this State, the court in which such action or proceeding is pending shall, upon motion of a party to such action or proceeding, stay the action or proceeding until such arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies.” Further, “[i]f an application has been made to a court of competent jurisdiction, whether in this State or not, for an order to arbitrate a controversy which is an issue involved in an action or proceeding before a court of this State and such application is undetermined, the court in which such action or proceeding is pending shall, upon motion of a party to such action or proceeding, stay the action or proceeding until the application for an order to arbitrate is determined and, if arbitration of such controversy is ordered, until an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies.” (Code Civ. Proc., § 1281.4.)

First, the stay applicable under Code of Civil

Procedure section 1281.4 “applies only when a court has ordered parties to arbitration, the arbitrable issues arise in the pending court action, and the parties in the arbitration are also parties to the court action.” (Leenay v. Superior Court (2022) 81 Cal.App.5th 553, 559.) Here, Plaintiff has failed to demonstrate that such circumstances are applicable in this case. This Court never ordered arbitration, and Plaintiff only points to an out-of-court arbitration proceeding, with no court order or pending petition to compel arbitration before any court.

Second, Plaintiff has failed to adequately identify the

subject of the alleged arbitration or demonstrate that such arbitration concerns “an issue involved” in this litigation. Plaintiff’s assertion that “arbitration rulings and EEOC findings will directly impact, clarify and resolve issues currently being litigated in court” is insufficient.

Lastly, judgment has already been entered in this case.

(See 06/10/2026 Minute Order.) Thus, there is no pending action left to stay.

Moreover, Plaintiff seeks a “stay/pause until July 17, 2026[.]” however, the instant motion is not set to be heard until July 21, 2026.

Accordingly, the instant motion is MOOT.

Conclusion

Based on the foregoing, the motion is DENIED as MOOT.